

Tentative Rulings for August 14, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2200797	CARBAJAL vs DESIRE HOME CARE, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested:

1. Confirm that defense counsel/defendant made a reasonable inquiry as to whether there are any other cases in which any class, collective, or representative claims similar to those in this case are made.
2. Discuss when payment to class members will be made, given the installment payment proposed.
3. Add to notice the full title and date of filing of the document to which the settlement agreement is attached (Declaration of Jill J. Parker in Support of Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement filed July 21, 2026, Ex. 1.).
4. Date for final approval hearing (order, ¶ 16).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304340	CUEVAS vs TMI AUTOMOTIVE PRODUCTS INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Is it necessary to attach the settlement agreement to the order/judgment? Perhaps refer to it by what document filed in the case it was attached to (Declaration of Arrash T. Fattahi filed December 29, 2025 as Ex. 3)?
2. Why does the judgment state that class members will release PAGA claims and not just the State and the named plaintiffs? Maybe add a reference to *Arias v. Superior Court* (2009) 46 Cal.4th 969 ("a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. . . . Accordingly, with respect to the recovery of civil penalties, nonparty employees as well as the government are bound by the judgment in an action brought under the act").
3. Add to order the fee split among plaintiffs' counsel's firms (and confirm that each plaintiff has given informed written consent to the fee split). CMO ¶ H.11
4. Add to judgment that the settlement checks will be valid for at least 90 days.
5. Add to judgment that the administrator will enclose the settlement check in an envelope stating, "YOUR CLASS ACTION SETTLEMENT CHECK IS ENCLOSED." CMO ¶ H.8.
6. Add to judgment that the administrator will send a reminder postcard to anyone who hasn't cashed their check within 60 days. CMO ¶ H.8
7. Add the language from the CMO re distribution to current employees of defendant. CMO ¶ H.8(d)

8. Add to judgment who will give notice of entry of judgment, the text of the notice, and how it will be given. CMO ¶ H.15
9. Need to select date to review administrator's report (judgment, ¶ 28).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600512	ALONZO vs COUNTY OF RIVERSIDE, OPERATING AS RIVERSIDE UNIVERSITY HEALTH SYSTEM	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Grant requests for judicial notice, except for Ex. E. County demurs to the First Amended Complaint on two grounds: (1) the pleading fails as a matter of law because the Labor Code section 512.1 does not apply to the County; and (2) pleading discloses a defense to the action that Plaintiff has failed to exhaust for administrative remedies through the grievance procedures set forth in the County's MOU with the labor union and hence the action is barred. These arguments fail. The inapplicability of Labor Code section 512.1 cannot be inferred from the allegations in the pleading or matters judicially noticeable. Furthermore, the defense based on Plaintiff's failure to exhaust her administrative remedies cannot reasonably be inferred from the allegations of the pleading or matters judicially noticeable.

Overrule; 20 days to answer.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600512	ALONZO vs COUNTY OF RIVERSIDE, OPERATING AS RIVERSIDE UNIVERSITY HEALTH SYSTEM	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling: Withdrawn on August 7.